

LICENSE AGREEMENT

THIS LICENSE AGREEMENT (this “Agreement”) made this ____ day of _____, 2023, by and between Royalton Road Landfill (“RRL”) and Brecksville-Broadview Heights City School District (“BBHCSD”).

WHEREAS, BBHCSD is the owner of the real property and improvements located at 9175 Market Place W, Broadview Heights, Ohio, as more particularly described on Exhibit A attached hereto and incorporated herein (the “Project Property”);

WHEREAS, RRL is the operator of a landfill adjacent to the Project Property;

WHEREAS, the Ohio Environmental Protection Agency (“Ohio EPA”) has required that RRL install gas monitory probes on the Project Property as depicted on Exhibit B attached hereto (the “Gas Probes”);

WHEREAS, BBHCSD and RRL desire to enter into this Agreement to permit the construction and maintenance of the Gas Probes, and to provide for all other terms and conditions with respect to the operation of the Gas Probes .

NOW, THEREFORE, in consideration of the mutual promises contained herein, the parties agree as follows:

1. BBHCSD grants to RRL, and its agents, contractors, subcontractors, and assigns, and their respective employees, a temporary license to enter upon those portions of the Project Property required to install the Gas Probes. BBHCSD shall have the right to observe the measurements and installation of the Gas Probes, and RRL shall provide such measurements to BBHCSD in writing within at least twenty (24) hours of obtaining such measurements. BBHCSD further grants to RRL, and its agents, contractors, subcontractors, and assigns, and their respective employees, the right to access the Project Property for quarterly monitoring of the Gas Probes as required by the Ohio EPA during regular business hours. RRL shall provide BBHCSD at least twenty four (24) hours’ notice prior to any planned monitoring to the Gas Probe, and BBHCSD shall be permitted to have a representative of BBHCSD present at all such times that RRL is accessing the Project Property.
2. RRL agrees to defend, indemnify and hold harmless BBHCSD, its officers, agents and employees from and against all suits, claims, losses, damages, or reasonable expenses for all manner of actions, liabilities, claims, causes of action, suits, debts, accounts, losses, damages and attorney’s fees including but not limited to bodily injury or property damage to the extent they arise out of or result from the existence, operation, or maintenance of the Gas Probes, or from RRL’s performance of the activities authorized by this Agreement or from RRL’s removal or failure to remove the Gas Probes.
3. RRL agrees that the Gas Probes will be temporary in nature and that RRL will be fully responsible for their ownership and for the proper operation and maintenance of the Gas Probes, in full compliance with all applicable federal, state, or city laws, rules and regulations, current or future.

4. RRL agrees that when the Gas Probes are no longer needed for the purpose as originally installed as determined by the Ohio EPA, RRL shall promptly cause the Gas Probes to be properly removed and abandoned in compliance with all applicable federal, state and city laws, rules and regulations, current or future, and shall promptly restore the Project Property to the condition it was in prior to the installation of the Gas Probes.
5. RRL shall maintain the Insurance described in the Insurance Certificate attached as Exhibit C in an amount of at least \$1,000,000.
6. This Agreement shall binding upon, and shall inure to the benefit of, the parties hereto and their heirs, personal representatives, successors and assigns.
7. No amendment, change, alteration or modification of this Agreement shall be effective unless it is in writing and signed by RRL and BBHCSD.
8. This Agreement reflects the entire understanding and agreement between RRL and BBHCSD with respect to the subject matter hereof and no statements, promises or inducements that are not contained herein shall be valid or binding.
9. This Agreement shall be governed by, and construed in accordance with, the internal laws of the State of Ohio.
10. This Agreement may signed in any number of counterparts with the same effect as if the signatures to each counterpart were upon a single instrument, and all such counterparts, together, shall be deemed an original of this Agreement
11. RRL shall be responsible for all costs subject to the cleanup and damage to BBHCSD property that may incur during the probe installation.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date and year first above written.

Royalton Road Landfill

By: _____
Name: _____
Title: _____

Brecksville-Broadview Heights Board of
Education

By: _____
Name: _____
Title: _____

[Signature Page to License Agreement]

EXHIBIT A

Legal Description to Project Property

EXHIBIT A-1

LEGAL DESCRIPTION OF PROJECT SITE

Situated in the City of Broadview Heights, County of Cuyahoga and State of Ohio and known as being part of Original Brecksville Township Lot 29 and bounded and described as follows:

Beginning at a 5/8 inch capped iron pin set at the intersection of the Northerly line of a parcel of land conveyed to Northern Ohio Chapter Associated Builders and Contractors Incorporated by Deed Volume 98-9333, Page 59 Official Records Cuyahoga County with the Easterly line of Market Place West (60.00 feet wide);

Thence North 00 deg. 22 min. 14 sec. West along the Easterly line of said Market Place West, 30.71 feet to a point of curvature therein;

Thence Northwesterly along the Easterly line of said Market Place West along the arc of a circle deflecting to the left 140.85 feet to a 5/8 inch capped iron pin set at a point therein, said curve having a radius of 65.00 feet and a chord which bears North 62 deg. 26 min. 47 sec. West, 114.86 feet;

Thence North 34 deg. 31 min. 20 sec. West, 33.20 feet to a 5/8 inch capped iron pin set;

Thence North 00 deg. 21 min. 56 sec. East, 260.00 feet to a 5/8 inch capped iron pin set in the Southerly line of a parcel of land conveyed to Tri Square Corporation by Volume 15610, Page 51 of Cuyahoga County Deed Records;

Thence North 89 deg. 37 min. 46 sec. East along the Southerly line of said Tri Square Corporation parcel and a parcel of land conveyed to Tri Square Corporation by Deed Volume 88-2373, Page 60 Original Records Cuyahoga County, 514.30 feet to a 5/8 inch capped iron pin set at its intersection with the Westerly line of a parcel of land conveyed to L & G Investments, Incorporated by A.F.N. 199812031076 Official Records Cuyahoga County;

Thence South 00 deg. 18 min. 44 sec. West along the Westerly line of said parcel of land conveyed to L & G Investments, Incorporated, 371.98 feet to a 5/8 inch capped iron pin set at its intersection with the Northerly line of said parcel of land conveyed to Northern Ohio Chapter Associated Builders and Contractors, Incorporated;

Thence South 89 deg. 37 min. 46 sec. West along the Northerly line of said parcel of land conveyed to Northern Ohio Chapter Associated Builders and Contractors, Incorporated, 393.08 feet to the place of beginning and containing 180.773 square feet or 4.1500 acres of land according to a survey by John M. Zaranec, Jr. P.S. 7126 for Zaranec Surveying Co. dated June 13, 2003 revised October 23, 2003.

The courses used in this description are to an assumed meridian and are intended to indicate angles only.

And being further known as Parcel A in the Lot Split and

Consolidation for Royalton 3001 Company and Halhub Realty Company, as shown by the recorded plat in Volume 328 of Maps, Page 14 of Cuyahoga County Records, be the same more or less but subject to all legal highways.

(Permanent Parcel No. 583-15-003 & Part of Permanent Parcel No. 583-15-007)

Permanent Parcel #: 583-15-007
583-15-003

Type Instrument: Limited Warranty

Tax District #: 3070

Grantor: Royalton Tool Co

Grantee: THE BRECKSVILLE-BROADVI

Balance Assumed: \$ 0.00

Total Consideration: \$ 377,750.00

Conv. Fee Paid: \$ 1,511.20

Transfer Fee Paid: \$ 1.00

Fee Paid by: Executive Title Agency

Exempt Code:

Date: 1/7/2004

Tax List Year: 2004

Land Use Code: 4000

Land Value: 393,800

Building Value: 0

Total Value: 393,800

Arms Length Sale: YES

Rcpt: D-01072004-11

Inst #: 71185

Check #: 7459

ROBERT KLAIBER P.E., P.S.
Legal Description complies with
Cuyahoga County Conveyance
Standards and is approved for
transfer:

JAN 07 2004

Count

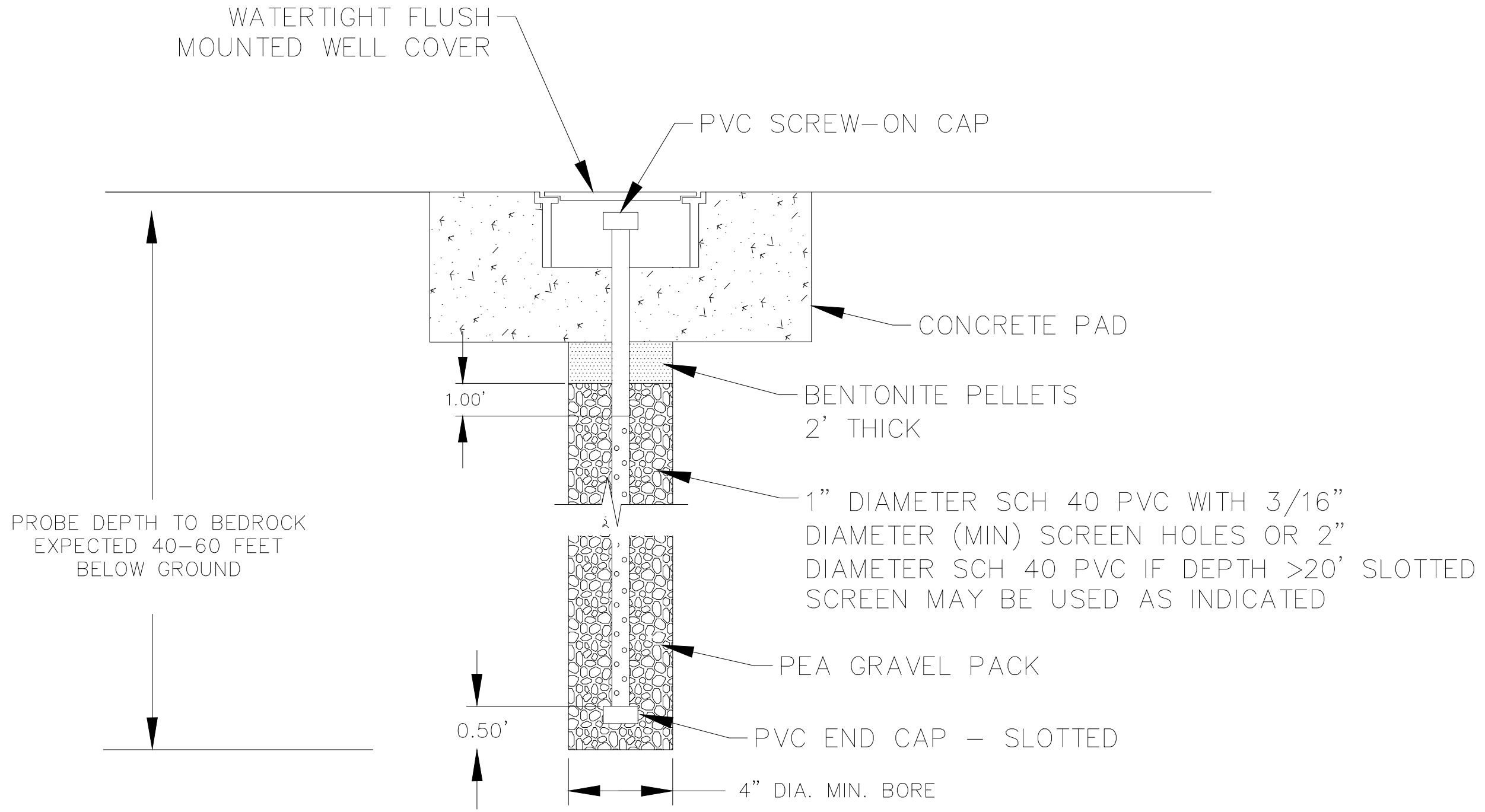
Frank Russo

CUYAHOGA COUNTY AUDITOR

CUYAHOGA COUNTY RECORDER
200401070627 PAGE 3 of 3

EXHIBIT B

Depiction of Gas Probes



FLUSH GAS PROBE DETAIL

- THE PROPOSED PROBE SHALL BE FLUSH WITH THE GROUND WITH A PROTECTIVE ACCESS CAP.
- ROYALTON ROAD LANDFILL AND SUBCONTRACTORS ARE RESPONSIBLE FOR ALL PROPERTY DAMAGE RESULTING DURING PROBE INSTALLATION (SUCH AS TO THE BUILDING, UTILITIES, PAVEMENT, ETC.).
- ADDITIONALLY, ROYATLON ROAD LANDFILL TAKES FULL RESPONSIBILITY OF THE FOLLOWING ITEMS DURING AND AFTER THE PROBE INSTALLATION:
 - UNDERGROUND UTILITY LOCATING/MARKING PRIOR TO THE START OF WORK.
 - COMPLETE REMOVAL, DISPOSAL, AND CLEANUP OF AUGER SPOILS AND DEBRIS GENERATED FROM THE PROBE INSTALLATION.
 - ALL REQUIRED PATCHING/REPAIRS OF THE EXISTING PAVEMENT SURROUNDING THE PROBE AS NEEDED WITHIN TWO WEEKS OF PROBE INSTALLATION.

REV. NO.	DATE	DRAWN	CHECKED	APPROVED	ISSUED
REV. NO.					
REV. NO.					
 ROYALTON ROAD LANDFILL BRECKSVILLE-BROADVIEW HTS BUS FACILITY PROPOSED GAS PROBE FIGURE					DRAWN BY:
					CHECKED BY:
					APPROVED BY: TBS
					DATE: 11/2023
					REV. NO.
					DRAWING NO.

EXHIBIT C

Insurance Certificate



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

12/6/2023

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Hylant - Cleveland 6000 Freedom Sq Dr, Ste 400 Independence OH 44131	CONTACT NAME: Colleen Williams PHONE (A/C, No, Ext): 216-447-1050 E-MAIL ADDRESS: colleen.williams@hylant.com FAX (A/C, No): 216-447-4088
License#: 23894 NORTCON-03	INSURER(S) AFFORDING COVERAGE INSURER A: Great Divide Insurance Co INSURER B: INSURER C: INSURER D: INSURER E: INSURER F:
INSURED Norton Environmental Inc. 6055 Rockside Woods Blvd #100 Independence OH 44131	NAIC # 25224

COVERAGES

CERTIFICATE NUMBER: 1818643492

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☐ PRO-JECT ☐ LOC OTHER:			ECP202564415	3/1/2023	3/1/2024	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 100,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000 \$
	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☐ HIRED AUTOS ONLY ☐ NON-OWNED AUTOS ONLY						COMBINED SINGLE LIMIT (Ea accident) \$ BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
	UMBRELLA LIAB ☐ OCCUR EXCESS LIAB ☐ CLAIMS-MADE DED ☐ RETENTION \$						EACH OCCURRENCE \$ AGGREGATE \$ \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y / N ☐	N / A				PER STATUTE ☐ OTH-ER ☐ E.L. EACH ACCIDENT \$ E.L. DISEASE - EA EMPLOYEE \$ E.L. DISEASE - POLICY LIMIT \$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

CERTIFICATE HOLDER**CANCELLATION**

EVIDENCE OF COVERAGE

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Judy K. Wilson

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